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extremes of partiality on both sides” and “assure[s] the parties that the jurors before whom they try the case will decide on the basis of the evidence placed before them, and not otherwise.” *Id.*, at 219. Because this system, “in and of itself, provides justification for striking any group of otherwise qualified jurors in any given case, whether they be Negroes, Catholics, accountants or those with blue eyes,” *id.*, at 212, we concluded that an equal protection challenge was unavailable against individual peremptory strikes.

Then, in a departure from the previous century of jurisprudence, the Court moved its focus from the protections accorded the *defendant* to the perceptions of a hypothetical struck *juror*. In *Batson*, the Court concluded that the government could not exercise individual strikes based solely on “the assumption—or [the] intuitive judgment—that [jurors] would be partial to the defendant because of their shared race.” 476 U. S., at 97. The Court’s opinion in *Batson* equated a law categorically excluding a class of people from jury service with the use of discretionary peremptory strikes to remove members of that class: “Just as the Equal Protection Clause forbids the States to exclude black persons from the venire on the assumption that blacks as a group are unqualified to serve as jurors, so it forbids the States to strike black veniremen on the assumption that they will be biased in a particular case simply because the defendant is black.” *Ibid.* (citation omitted). *Batson* repeatedly relies on this analogy. See *id.*, at 86, 89; *id.*, at 87 (“A person’s race simply is unrelated to his fitness as a juror” (internal quotation marks omitted)); see also *ante*, at 299 (quoting *Batson*, *supra*, at 104–105 (Marshall, J., concurring)); *Powers*, 499 U. S., at 410 (“Race cannot be a proxy for determining juror bias or competence”).

But this framing of the issue ignores the nature and basis of the peremptory strike and the realities of racial prejudice. A peremptory strike reflects no judgment on a juror’s competence, ability, or fitness. Instead, the strike is exercised

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based on intuitions that a potential juror may be less sympathetic to a party's case. As Chief Justice Burger emphasized, "venire-pool exclusion bespeaks *a priori* across-the-board total unfitness, while peremptory-strike exclusion merely suggests potential partiality in a particular isolated case." *Batson*, *supra*, at 122–123 (dissenting opinion) (internal quotation marks omitted); accord, *Powers*, *supra*, at 424 (Scalia, J., dissenting). "[T]he question a prosecutor or defense counsel must decide is not whether a juror of a particular race or nationality is *in fact* partial, but whether one from a different group is *less likely* to be." *Swain*, 380 U. S., at 220–221 (emphasis added). Therefore, "veniremen are not always judged solely as individuals for the purpose of exercising peremptory challenges"; instead, "they are challenged in light of the limited knowledge counsel has of them, which may include their group affiliations, in the context of the case to be tried." *Id.*, at 221.

Batson rejects the premise that peremptory strikes can be exercised on the basis of generalizations and demands instead "an assessment of individual qualifications." 476 U. S., at 87. The Court's *Batson* jurisprudence seems to conceive of jury selection more as a project for affirming "the dignity of persons" than as a process for providing a jury that is, including in the parties' view, fairer. *Powers*, *supra*, at 402; see *Edmonson v. Leesville Concrete Co.*, 500 U. S. 614, 631 (1991); see also *J. E. B. v. Alabama ex rel. T. B.*, 511 U. S. 127, 140–142 (1994).

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Batson's focus on individual jurors' rights is wholly contrary to the rationale underlying peremptory challenges. And the application of equal protection analysis to individual strikes has produced distortions in our jurisprudence that are symptomatic of its poor fit, both as a matter of common sense and the protections traditionally accorded litigants.

The Court did not apply equal protection principles to individual peremptory strikes until more than 100 years after

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the Fourteenth Amendment was ratified. Once it did, it quickly extended *Batson* to civil actions, strikes by criminal defendants, and strikes based on sex. *Edmonson*, *supra*; *McCullum*, 505 U. S. 42; *J. E. B.*, *supra*. But even now, we do not apply generally applicable equal protection principles to peremptory strikes. For example, our precedents do not apply “strict scrutiny” to race-based peremptory strikes. And we apply “the same protection against [sex] discrimination as race discrimination” in reviewing peremptory strikes, *J. E. B.*, *supra*, at 145, even though sex is subject to “heightened” rather than “strict” scrutiny under our precedents. Finally, we have not subjected all peremptory strikes to “rational basis” review, which normally applies absent a protected characteristic. *Cleburne v. Cleburne Living Center, Inc.*, 473 U. S. 432, 440–442 (1985); see generally *Batson*, *supra*, at 123–125 (Burger, C. J., dissenting); *J. E. B.*, *supra*, at 161 (Scalia, J., dissenting). Thus, the Court’s own jurisprudence seems to recognize that its equal protection principles do not naturally apply to individual, discretionary strikes.

Now that we have followed *Batson* to its logical conclusion and applied it to race- and sex-based strikes without regard to the race or sex of the defendant, it is impossible to exercise a peremptory strike that cannot be challenged by the opposing party, thereby requiring a “neutral” explanation for the strike. But requiring an explanation is inconsistent with the very nature of peremptory strikes. Peremptory strikes are designed to protect against fears of partiality by giving effect to the parties’ intuitions about jurors’ often-unstated biases. “[E]xercised on grounds normally thought irrelevant to legal proceedings or official action,” like “race, religion, nationality, occupation or affiliations,” *Swain*, *supra*, at 220, they are a form of action that is by nature “arbitrary and capricious,” 4 W. Blackstone, Commentaries on the Laws of England 346 (1769). The strike must “‘be exercised with full freedom, or it fails of its full purpose.’” *Lewis v. United States*, 146 U. S. 370, 378 (1892). Because

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the strike may be exercised on as little as the “‘sudden impressions and unaccountable prejudices we are apt to conceive upon the bare looks and gestures of another,’” *id.*, at 376, reasoned explanation is often impossible. And where scrutiny of individual strikes is permitted, the strike is “no longer . . . peremptory, each and every challenge being open to examination.” *Swain, supra*, at 222.

In sum, as other Members of this Court have recognized, *Batson* charted the course for eliminating peremptory strikes. See, e.g., *Rice v. Collins*, 546 U.S. 333, 344 (2006) (BREYER, J., concurring); *Batson, supra*, at 107–108 (Marshall, J., concurring). Although those Justices welcomed the prospect, I do not. The peremptory system “has always been held essential to the fairness of trial by jury.” *Lewis, supra*, at 376. And the basic premise of *Strauder*—that a juror’s racial prejudices can make a trial less fair—has not become “obsolete.” *McCullum*, 505 U.S., at 61 (opinion of THOMAS, J.). The racial composition of a jury matters because racial biases, sympathies, and prejudices still exist. This is not a matter of “assumptions,” as *Batson* said. It is a matter of reality.¹³ The Court knows these prejudices exist. Why else would it say that “a capital defendant accused of an interracial crime is entitled to have prospective jurors informed of the race of the victim and questioned on the issue of racial bias”? *Turner v. Murray*, 476 U.S. 28, 36–37 (1986).¹⁴ For that matter, why else say here that

¹³ Academic studies appear to support this commonsense proposition. See, e.g., Carter & Mazzula, Race and Racial Identity Status Attitudes, 11 J. Ethnicity Crim. Justice 196, 211 (2013) (“[R]acial bias exists in juror decision making”); Ellsworth & Sommers, Race in the Courtroom, 26 Personality & Soc. Psychol. Bull. 1367, 1367–1379 (2000). Cf. *J. E. B. v. Alabama ex rel. T. B.*, 511 U.S. 127, 148–149 (1994) (O’Connor, J., concurring) (“We know that like race, gender matters”).

¹⁴ It is telling that Flowers here sought a new trial because the trial court supposedly failed to allow sufficient questioning on racial prejudice. See Record 2936. Evidently Flowers was operating “on the assumption that” jurors might “be biased in a particular case simply because the de-

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“Flowers is black” and the “prosecutor is white”? *Ante*, at 289. Yet the Court continues to apply a line of cases that prevents, among other things, black defendants from striking potentially hostile white jurors. I remain “certain that black criminal defendants will rue the day that this Court ventured down this road that inexorably will lead to the elimination of peremptory strikes.” *McCullum*, *supra*, at 60 (opinion of THOMAS, J.).

Instead of focusing on the possibility that a juror will misperceive a peremptory strike as threatening his dignity, I would return the Court’s focus to the fairness of trials for the defendant whose liberty is at stake and to the People who seek justice under the law.

* * *

If the Court’s opinion today has a redeeming quality, it is this: The State is perfectly free to convict Curtis Flowers again. Otherwise, the opinion distorts our legal standards, ignores the record, and reflects utter disrespect for the careful analysis of the Mississippi courts. Any competent prosecutor would have exercised the same strikes as the State did in this trial. And although the Court’s opinion might boost its self-esteem, it also needlessly prolongs the suffering of four victims’ families. I respectfully dissent.

fendant is black.” *Batson v. Kentucky*, 476 U. S. 79, 97 (1986). Perhaps unsurprisingly, then, he exercised peremptory strikes against 11 white jurors and zero black jurors.

REPORTER'S NOTE

The next page is purposely numbered 901. The numbers between 357 and 901 were intentionally omitted, in order to make it possible to publish the orders with *permanent* page numbers, thus making the official citations available upon publication of the preliminary prints of the United States Reports.

ORDERS FOR JUNE 20, 2019

JUNE 20, 2019

Certiorari Granted

No. 18–1334. FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO *v.* AURELIUS INVESTMENT, LLC, ET AL.;

No. 18–1475. AURELIUS INVESTMENT, LLC, ET AL. *v.* COMMONWEALTH OF PUERTO RICO ET AL.;

No. 18–1496. OFFICIAL COMMITTEE OF UNSECURED CREDITORS OF ALL TITLE III DEBTORS OTHER THAN COFINA *v.* AURELIUS INVESTMENT, LLC, ET AL.;

No. 18–1514. UNITED STATES *v.* AURELIUS INVESTMENT, LLC, ET AL.; and

No. 18–1521. UNIÓN DE TRABAJADORES DE LA INDUSTRIA ELÉCTRICA Y RIEGO, INC. *v.* FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO ET AL. C. A. 1st Cir. *Certiorari* granted. Cases consolidated, and will be set for argument in the second week of the October 2019 argument session.

Parties challenging the First Circuit’s ruling on the Appointments Clause issue shall file an opening brief on that issue on or before Thursday, July 25, 2019. Briefs are to bear a light blue cover and are limited to 15,000 words.

Parties supporting the First Circuit’s ruling on the Appointments Clause issue and challenging the ruling on the *de facto* officer doctrine issue shall file a consolidated opening brief on or before Thursday, August 22, 2019. Briefs are to bear a light red cover and are limited to 20,000 words.

Parties challenging the First Circuit’s ruling on the Appointments Clause issue and supporting the ruling on the *de facto* officer doctrine issue shall file a consolidated opening brief and reply on or before Thursday, September 19, 2019. Briefs are to bear a yellow cover and are limited to 13,000 words.

Parties challenging the First Circuit’s ruling on the *de facto* officer doctrine issue shall file with the Clerk and serve upon

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counsel a reply brief limited to that issue on or before 2 p.m., Tuesday, October 8, 2019. Briefs are to bear a tan cover and are limited to 6,000 words.

Amicus curiae briefs challenging the First Circuit's ruling on the Appointments Clause issue and/or supporting the ruling on the *de facto* officer doctrine issue are to be filed on or before Thursday, August 1, 2019. Briefs are to bear a light green cover and are limited to 9,000 words. *Amicus curiae* briefs supporting the First Circuit's ruling on the Appointments Clause issue and/or challenging the ruling on the *de facto* officer doctrine issue are to be filed on or before Thursday, August 29, 2019. Briefs are to bear a dark green cover and are limited to 9,000 words. An *amicus curiae* shall file only a single brief. Reported below: 915 F. 3d 838.

Certiorari Denied

No. 18–9745 (18A1345). *WILSON v. GEORGIA*. Sup. Ct. Ga. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

No. 18–9746 (18A1346). *WILSON v. FORD, WARDEN*. Sup. Ct. Ga. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.